

Standard Purchase and Sale Agreement

This agreement is made this _____ day of _____, _____

between Seller(s) _____

and Buyer(s) _____

And/or assigns.

Seller agrees to sell and buyer agrees to buy the following described real property together with all improvements and fixtures and the personal property described below:

Street Address: _____

City, State, Zip: _____

Legal description: _____

The purchase price to be paid as follows:

Cash Due at Closing \$ _____

Total Purchase Price \$ _____

1. EARNEST MONEY to be deposited with a licensed title company or attorney within 48 hours of acceptance and ratification of offer.

2. PRORATIONS, IMPOUNDS & SECURITY DEPOSITS: Loan interest, property taxes, insurance, and rents shall be prorated as of the date of closing. All security deposits shall be transferred to buyer at closing. All impound accounts for taxes and insurance are included in the purchase price and shall be transferred to buyer at closing. Any shortage in these accounts shall be charged to seller at closing.

3. CLOSING DATE AND TRANSFER OF TITLE: This transaction shall close on or about _____ Closing will be held at _____ and Seller(s) agree to transfer marketable title free and clear of all encumbrances except those listed and pay any required state taxes or stamps required to record deed and mortgage. Buyer agrees to furnish title insurance in the amount of the purchase price, showing no encumbrances or exceptions other than previously noted.

5. DEFAULTS: If buyer defaults under this contract, any and all monies deposited by buyer(s) shall be retained by seller as full liquidated damages.

6. SUCCESSORS AND ASSIGNEES: The terms and conditions of this contract shall bind all successors, heirs, administrators, trustees, executors and assignees of the respective parties.

7. ACCESS: Sellers agree that buyers may advertise property and have access during reasonable hours to show property to others.

8. INSPECTION:(a) Buyer shall have 10 days from Effective Date ("Inspection Period") within which to have such inspections of the Property performed as Buyer shall desire and utilities service shall be made available by the Seller during the Inspection Period; (b) Buyer shall be responsible for prompt payment for such inspections and repair of damage to and restoration of the Property resulting from such inspections; and (c) if Buyer determines, in Buyer's sole discretion, that the condition of the Property is not acceptable to Buyer, Buyer may cancel this Contract by delivering written notice of such election to Seller prior to the expiration of the Inspection Period. If Buyer timely cancels this Contract, the deposit(s) paid shall be immediately returned to Buyer; thereupon, Buyer and Seller shall be released of all further obligations under this Contract.

9. ASSIGNMENTS: This contract may be assigned without the written consent of all parties except in connection with a tax-deferred exchange, and if assigned, then this Contract shall be binding on the assignee and assignees heirs and successors.

10. ADDITIONAL TERMS AND CONDITIONS:

- a. Contract is subject to partners approval
- b. Contract subject to acceptable appraisal by buyer
- c. In the event of the buyers default, the deposit shall be the sole remedy

The undersigned have read the above information, understand it and verify that it is correct.

Date: _____

Date: _____

Seller: _____

Buyer: _____

Seller: _____

Buyer: _____